**BRENDAN NGEHSI NEWANFORBI**
Plaintiff, In Pro Per
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**UNITED STATES DISTRICT COURT**

**EASTERN DISTRICT OF CALIFORNIA**

| | |
|---|---|
| **BRENDAN NGEHSI NEWANFORBI,**<br><br>Plaintiff,<br><br>v.<br><br>**DIANA CANDELARIA, in her individual capacity, and STEVE GORDON, Director of the California DMV, in his official capacity,**<br><br>Defendants. | Case No. 2:26-cv-00983-DC-CSK<br><br>**SUPPLEMENTAL DECLARATION OF BRENDAN NGEHSI NEWANFORBI IN SUPPORT OF PLAINTIFF'S OBJECTIONS TO MAGISTRATE JUDGE'S FINDINGS AND RECOMMENDATIONS**<br><br>(ECF No. 6)<br><br>*[Filed Concurrently with Objections]* |

**SUPPLEMENTAL DECLARATION OF BRENDAN NGEHSI NEWANFORBI IN SUPPORT OF PLAINTIFF'S OBJECTIONS TO MAGISTRATE JUDGE'S FINDINGS AND RECOMMENDATIONS (ECF No. 6)**

I, BRENDAN NGEHSI NEWANFORBI, declare as follows:

1. I am the Plaintiff in the above-captioned action, proceeding pro se. I am over the age of 18 and competent to testify to the matters set forth herein. I have personal knowledge of the facts stated in this declaration and, if called as a witness, I could and would testify competently thereto.

2. I submit this Supplemental Declaration in support of my Objections to the Magistrate Judge's Findings and Recommendations (ECF No. 6), which are filed concurrently herewith. The

purpose of this declaration is to authenticate and place before the Court three documents that bear directly on the points raised in those Objections, and to provide concrete factual context for the SR-22 financial-responsibility burden, the dashcam evidence of the urine-versus-alcohol contradiction, and the ongoing professional consequences of the CDL suspension imposed by Defendant Diana Candelaria's February 11, 2025 written decision.

**I. THE FEBRUARY 11, 2025 DMV DECISION AND THE THREE-YEAR FINANCIAL RESPONSIBILITY MANDATE (EXHIBIT A)**

3. Attached as **Exhibit A** is a true and correct copy of the DMV Notification of Findings and Decision in Case Number 34739340, dated February 11, 2025, signed by Defendant Diana Candelaria as 'Driver Safety Hearing Officer.' Exhibit A is the operative written decision sustaining the one-year administrative per se refusal suspension of my driving privilege at issue in this action. It was mailed to me at 1455 Cat Tail Drive, Stockton, California 95204, and is the document by which Defendant Candelaria reduced her January 24, 2025 hearing determination to writing.

4. Page 3 of Exhibit A, immediately below the heading 'DECISION' and Defendant Candelaria's signature, sets out the conditions that I must satisfy before any driver license may be reissued. Those conditions include the following, quoted verbatim:

> 'A $125.00 reissue fee must be paid to DMV §§14904 and 14906 VC.'
>
> 'You must file proof of financial responsibility as provided in §16430 VC.'
>
> 'You must maintain proof of financial responsibility for three years.'

5. The three-year financial responsibility requirement set forth in Exhibit A is the SR-22 mandate referenced in paragraph 32(f) of the First Amended Complaint. By the express terms of Defendant Candelaria's written decision, that requirement runs through approximately February

2028. The chain of causation between Defendant Candelaria's adjudicative conduct and the ongoing SR-22 burden therefore appears on the face of her own signed decision; it is not an inference or a contested allegation.

**II. THE DAIRYLAND SR-22 POLICY CURRENTLY IN FORCE (EXHIBIT B)**

6. Attached as **Exhibit B** is a true and correct copy of California Auto Insurance Policy Number 11411043872, issued to me by Viking Insurance Company of Wisconsin (operating under the Dairyland Insurance brand), together with the accompanying California Insurance Proof Certificate (SR-22 filing), Named Non-Owner Acknowledgement, Uninsured Motorist Bodily Injury Rejection, California Automobile Insurance Identification Card, and Adobe Sign Audit Report establishing my electronic execution of the application on May 18, 2026.

7. Exhibit B is the SR-22 policy I currently maintain to comply with the three-year financial responsibility mandate imposed by Defendant Candelaria's February 11, 2025 decision. The following features of Exhibit B are material:

(a) **Policy term.** May 18, 2026 through May 18, 2027, with an annual term premium of $281.28.

(b) **Policy type.** California Named Non-Owner Policy. The Declarations page expressly states: 'A Named Non-Owner Policy provides the selected coverage for the Named Insured while driving non-owned cars. Coverage does not apply when driving a non-owned car available for regular use by the Named Insured.' This policy structure is what is available to me as a suspended-license California driver; no carrier will write me an owners-coverage policy on a vehicle I own.

(c) **Coverages.** Statutory minimum bodily injury liability ($30,000 each person / $60,000 each accident) at $115.56 and property damage liability ($15,000 each accident) at $165.72. Uninsured-motorist bodily injury coverage is shown as 'Rejected'; underinsured-motorist bodily injury coverage is shown as 'Rejected'; medical payments coverage is 'Not Selected.' The policy carries no comprehensive, collision, rental-reimbursement, or roadside-assistance coverage.

(d) **Driver Information.** The Driver Information block lists my Financial Responsibility status as 'SR22 CA.'

(e) **SR-22 filing with DMV.** The accompanying California Insurance Proof Certificate is captioned 'Department of Motor Vehicle - Financial Responsibility Area, P.O. Box 932338 M/S J237, Sacramento, CA 94232-3380' and bears the 'SR-22 (S)' box marked, identifying it as 'A motor vehicle liability policy as defined in CVC Section 16450 (BROAD COVERAGE).' The certificate is executed by an authorized representative of Viking Insurance Company of Wisconsin on May 18, 2026.

(f) **Fee schedule.** Per the Declarations page, the policy carries a $10 reissue fee, a $10 billing fee, and an $8 automatic-payments billing fee. The premium is paid in 11 monthly installments.

(g) **Annual mileage.** 5,000 annual miles, reflecting the restricted nature of my non-owner driving.

8. Several features of Exhibit B distinguish an SR-22 filing from the ordinary automobile insurance required of California drivers under CVC § 16020(a) and bear directly on Objection III of my Objections.

(a) **Required DMV filing.** The SR-22 designation requires the insurer to file the California Insurance Proof Certificate with the DMV Financial Responsibility Section on the insured's behalf. An ordinary California automobile insurance policy carries no such filing obligation, and the carrier is not in regular reporting contact with the DMV over the existence of the policy.

(b) **Mandatory lapse notification.** The California Insurance Proof Certificate filed pursuant to CVC § 16450 obliges the insurer to notify the DMV of any cancellation, termination, or lapse pursuant to CVC § 16433. If I let the policy lapse, the DMV is informed automatically and additional administrative consequences follow, including reissue requirements and the risk of further suspension.

(c) **Restricted policy form.** Because my driving privilege is suspended, no carrier will issue me an owners-coverage policy. The only structure available to me is a Named Non-Owner policy, which provides liability protection only when I am driving someone else's non-owned vehicle not available for my regular use. This is not the ordinary form of insurance the Magistrate Judge appeared to assume in the Findings and Recommendations.

(d) **Premium structure.** Even at the bare-minimum coverage levels reflected on Exhibit B (with UM and UIM rejected and medical payments unselected), the annual term premium is $281.28 — coverage I would not be required to purchase at all but for the suspension imposed by Defendant Candelaria.

9. To satisfy the three-year financial responsibility mandate set forth on page 3 of Exhibit A, I will be required to maintain and serially renew SR-22 coverage substantially equivalent to

Exhibit B through approximately February 2028. Each lapse, gap, or termination during that period will be reported by the insurer to the DMV under CVC § 16433 and will expose me to further administrative consequences.

**III. THE CHP DASHCAM TRANSCRIPT (EXHIBIT C)**

10. Attached as **Exhibit C** is a true and correct transcript of the audio and video recording captured by the California Highway Patrol dashcam during the November 1, 2024 incident on Interstate 580 east of Isabel Avenue in Livermore, Alameda County, California (CHP Case Number RJ68845). The transcript reflects, by content and approximate time stamp, what was said by Officer Santiago Meza-Gonzalez (Badge #023295), Officer Jose Melano (Badge #023054), and me during the relevant portions of the encounter. I personally prepared the transcript from the dashcam recording produced in the related action *Newanforbi v. State of California, et al.*, No. 2:25-cv-01460-DC-CSK, where it was filed as Exhibit A to the Complaint on May 27, 2025.

11. The portion of Exhibit C captioned 'II. CUP INSPECTION AND DETERMINATION' records that Officer Melano seized a cup from the interior of the vehicle, examined it, and identified its contents on the spot. The relevant exchange, quoted verbatim from Exhibit C, is:

> Melano: 'What is it? Let me see.'
>
> Melano: 'Is it water? No this is piss. This is pee.'
>
> Melano: 'I'm telling you it's piss. It smells like piss.'
>
> Meza-Gonzalez: 'No I'm not gonna smell that.'
>
> Melano: 'Yeah, I'm telling you it's piss.'
>
> Melano: 'OK. Leave it there. Put it back.'

12. The transcript later records Officer Melano repeating that identification while conferring with his partner about the post-arrest paperwork: 'Let me sanitize my gloves, there was

piss everywhere. Gross.'

13. The cup identified by Officer Melano as urine was the only liquid the officers discovered inside the vehicle on the night of the incident. The contemporaneous on-scene identification recorded on the dashcam is materially inconsistent with the subsequent sworn DS 367 Officer's Statement signed by Officer Meza-Gonzalez under penalty of perjury, which attributes a 'strong distinct odor of an alcoholic beverage emitting from within the vehicle' as a primary basis for the arrest decision. Exhibit C is the documentary record of what the officers said on scene; the DS 367 is the subsequent sworn statement that supplanted it.

14. I authenticate Exhibit C in this declaration so that the District Judge may see, in the officers' own recorded words, the contradiction the First Amended Complaint alleges, and so that the Court has a direct record on which to evaluate the Findings and Recommendations' Footnote 2 treatment of that contradiction.

**IV. ONGOING PROFESSIONAL CONSEQUENCES AND CDL EMPLOYABILITY**

15. I am a professional holder of a California Class A Commercial Driver's License. My CDL carries doubles, triples, and tank vehicle endorsements. Prior to the suspension imposed in Case Number 34739340, my Class A CDL was the basis of my livelihood as a long-haul and intrastate commercial driver.

16. The administrative suspension imposed in Case Number 34739340 was characterized in the DMV record as a refusal-related suspension under CVC § 13353. A refusal-related suspension by a Class A CDL holder is reportable through the Commercial Driver License Information System ('CDLIS') maintained pursuant to 49 C.F.R. Part 384, and a chemical-test refusal is reportable to the federal Drug and Alcohol Clearinghouse maintained by the Federal

Motor Carrier Safety Administration pursuant to 49 C.F.R. Part 382, Subpart G. CDL-employer hiring practices in the trucking industry routinely query both systems before hiring, reinstating, or assigning safety-sensitive duties to a driver. A refusal-related entry on a Class A CDL holder's record materially impairs employability with motor carriers.

17. Since the suspension took effect, I have been unable to obtain comparable Class A CDL employment of the type I performed before November 1, 2024. The combination of the CDLIS-reported suspension, the SR-22 mandate evidenced by Exhibits A and B, and the reissue conditions described on page 3 of Exhibit A operates as a continuing impairment on my ability to earn a living in my chosen profession. These effects continue as of the date of this declaration and will continue at least through completion of the three-year financial responsibility period in approximately February 2028.

**V. ONGOING PERSONAL CONSEQUENCES**

18. The administrative suspension and its collateral consequences have caused me, and continue to cause me, sustained emotional distress, anxiety, and disruption to my personal and family stability. I do not seek in this declaration to expand the damages allegations of the First Amended Complaint; I provide this paragraph only to confirm that the harms described in paragraphs 35 and 36 of the First Amended Complaint are not abstract or hypothetical, but reflect circumstances I am living with as of the date of this declaration.

**VI. PURPOSE OF DECLARATION**

19. I make this declaration in support of my Objections so that the District Judge has, in addition to the legal arguments set forth in those Objections, the underlying documentary record

bearing on Objection I.D (the urine-versus-alcohol contradiction and Footnote 2 of the Findings and Recommendations), Objection III.B (the SR-22 punitive-encumbrance argument and its distinction from CVC § 16020(a) ordinary insurance), and Objection III.C (the continuing CDL liberty-interest harm). The three exhibits authenticated above are the contemporaneous documentary evidence underlying those Objections.

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Executed on June 18, 2026, at Stockton, California.

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BRENDAN NGEHSI NEWANFORBI

Plaintiff, Pro Se

## INDEX OF EXHIBITS TO SUPPLEMENTAL DECLARATION

**Exhibit A** — DMV Notification of Findings and Decision in Case Number 34739340, dated February 11, 2025, signed by D. Candelaria, Driver Safety Hearing Officer (3 pages plus Certificate of Service).

**Exhibit B** — Dairyland (Viking Insurance Company of Wisconsin) California Auto Insurance Policy Number 11411043872, effective May 18, 2026 through May 18, 2027, including the California Insurance Proof Certificate (SR-22 filing), Declarations Page, California Automobile Insurance Identification Card, Named Non-Owner Acknowledgement, Uninsured Motorists Bodily Injury Coverage Rejection, signed California Auto Application, and Adobe Sign Audit Report dated May 18, 2026.

**Exhibit C** — Transcript of California Highway Patrol Dashcam Video and Audio Recording, Incident Date November 1, 2024, Location Interstate 580 East, Livermore, Alameda County, California, CHP Case Number RJ68845, Recording Duration 00:54:36 to 01:57:10.